

**RESOLUTION ADOPTING FLAG DISPLAY POLICY
FOR
YOWELL RANCH HOMEOWNERS' ASSOCIATION, INC. (the "Association")**

WHEREAS, Texas Property Code § 202.011 (or other numbered sections subsequently used to prevent confusion by the enacting of identically numbered, separate provisions) is effective immediately, allowing owners in property owner associations the limited right to display certain flags; and

WHEREAS, the Association desires to adopt a resolution setting forth guidelines on the enforcement of its current conditions, covenants, restrictions, and rules, and the display of flags.

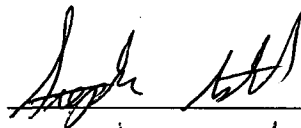
BE IT RESOLVED, that, to the extent any dedicatory instrument of the Association prohibits the display of flags in contravention of Texas Property Code § 202.011 (or other numbered sections subsequently used to prevent confusion by the enacting of identically numbered, separate provisions), the Association shall enforce that restriction only to the extent allowable by law, and therefore adopts the following guidelines as follows:

1. Flags permitted to be displayed shall be the flag of the United States of America, the flag of the State of Texas, the flag of any governmental subdivision of the State of Texas, and the flag of any branch of the United States armed forces.
2. Flag displays shall be permitted only on property owned by the owner or over which the owner has exclusive control and use.
3. With respect to the United States flag, any such display must be in accordance with 4 U.S.C. Sections 5-10.
4. With respect to the Texas flag, any such display must be in accordance with Chapter 3100, Government Code.
5. A flagpole attached to a dwelling or a freestanding flagpole must be constructed of a permanent, long-lasting material, with a finish appropriate to the materials used in the construction of the flagpole and harmonious with the dwelling.
6. The display of a flag, or the location and construction of the supporting flagpole, must comply with applicable zoning ordinances, easements, and set backs of record.
7. A displayed flag and the flagpole on which it is flown must be maintained in good condition. Any deteriorated flag or deteriorated or structurally unsafe flagpole must be repaired or removed.
8. No more than one flagpole may be constructed on any property, and no flagpole shall exceed more than 20 feet in height.
9. Flags may not be displayed that exceed a dimension of 8 feet in height by 5 feet in width.
10. Lighting used to illuminate any displayed flag shall not operate to create a nuisance, and shall not illuminate any property other than the owner of such displayed flags property, nor shall it illuminate the interior of any dwelling at any time.
11. No Owner shall allow the external halyard of a flagpole to create noise that can be heard more than twenty-five feet (25') from the flagpole.

To the extent these guidelines contradict with any previous guidelines, rules, covenants, or restrictions, these guidelines shall control. These guidelines are supplementary and are in addition to any and all other covenants, conditions, restrictions, rules, and guidelines in effect for the Association.

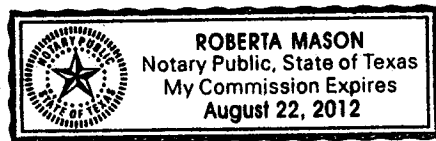
This resolution was passed by a unanimous vote of the Board of Directors of the Association on the date set forth below to be effective immediately.

Executed this the 15th day of Dec, 2011.

By: 
Name: Stephen Ashlock
Title: President

STATE OF TEXAS)
COUNTY OF Travis)

This instrument was acknowledged before me on this the 15 day of December, 2011, by Stephen Ashlock, President of and for the Association, for the purposes therein expressed.




Notary Public, State of Texas

AFTER RECORDING PLEASE RETURN TO:

RealManage
10800 Pecan Park Blvd.
Suite 100
Austin, TX 78750

SLATER KENNON & PUGH LTD LLP
ATTN KATY
4807 SPICEWOOD SPRINGS ROAD
BUILDING 2 STE 240
AUSTIN, TX 78759

6
(3) (E)
15.00
#5278

Bell County
Shelley Coston
County Clerk
Belton, Texas 76513



70 2011 00045070

Instrument Number: 2011-00045070

As

Recorded On: December 29, 2011

Recordings

Parties: YOWELL RANCH HOMEOWNERS ASSOCIATION INC

Billable Pages: 2

To EX PARTE

Number of Pages: 3

Comment: RESOLUTION FLAG DISPLAY

(Parties listed above are for Clerks reference only)

**** Examined and Charged as Follows: ****

Recordings	15.00
Total Recording:	15.00

***** DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2011-00045070

Receipt Number: 123401

Recorded Date/Time: December 29, 2011 09:29:03A

User / Station: N Mitchell - Cash Station 2

Record and Return To:

SLATER KENNON & PUGH LTD LLP
4807 SPICEWOOD SPRG RD BLDG 2 STE 240
ATTN KATY
AUSTIN TX 78759



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property
Records in Bell County, Texas

Shelley Coston
Bell County Clerk